

100 Beal Street: Primary Source Legal Record

Official Documentary Record: Title History, 2019 Litigation Impasse, Commonwealth Veto, and 2021 Rescission

Subject Parcel: 100 Beal St (Map 58, Lot 23; School Tract II)	Fee Simple Owner: Hingham Housing Authority (M.G.L. c. 121B)	Primary Sources Only: 100% Registry & Town Minutes
Statutory Control: M.G.L. c. 121B, § 34; c. 184A, § 3; c. 30B	Current Title Status: Fee Simple Absolute (State Restricted)	News Sources: ZERO (Strict Municipal Citations)

1. Statutory Foundations & The 1989 Fee Conveyance

The 1989 Fee Deed (Book 09097, Pages 158–161): Executed on March 7, 1989 and recorded April 21, 1989 (Doc #29758). The Town of Hingham conveyed 15.014 acres (School Tract II, Plan Book 17, Page 508) to the Hingham Housing Authority for \$45,751.00.

"In the event that a breach of the above condition should occur after December 17, 2003, all right, title and interest in and to the above described property shall revert to and become the property of the Town of Hingham which shall have the immediate right of entry thereon, provided, however, that said right of entry shall terminate after thirty years from the date hereof as provided in Massachusetts General Laws, Chapter 184A, Section 3." (Book 09097, Page 160)

Statutory Expiration on March 7, 2019: Under M.G.L. c. 184A, § 3 (recodified as c. 184A, § 7) and M.G.L. c. 184, § 23, any possibility of reverter or right of re-entry terminates automatically after 30 years if no breach occurs. Because the property was continuously operated as an adolescent facility by SSEC and Bay State Community Services, the Town's reverter extinguished by law on **March 7, 2019**, vesting fee simple absolute title in the HHA.

2. The 2001 MOU & 2006 Town Meeting Authorization

- **June 12, 2001 MOU & Plan 100 of 2001:** Agreement between Town and HHA regarding munitions bunker remediation and potential re-division. Associated plan entitled *"Division of School Tract II"* prepared by Gale Associates, Inc. on June 8, 2001, recorded as **Plan 100 of 2001** (delineating 2.0-acre facility lot and 8.02-acre Lot 2).
- **2006 Town Meeting Warrant Article 38:** Town Meeting voted unanimously to authorize the Board of Selectmen to amend the 1989 deed restriction to permit affordable housing on the Subsidized Housing Inventory (SHI).
- **Registry Census Finding:** A complete audit of the Plymouth County Registry of Deeds confirms that **no deed amendment or certificate of release was ever executed or recorded** by the Select Board. The 1989 deed remained unamended on the record.

3. The 2019 Litigation Impasse: Board of Selectmen Minutes

Nine days before the 30-year reverter expired, the Board of Selectmen convened in Executive Session with Town Real Estate Counsel Susan Murphy:

Board of Selectmen Executive Session Minutes (February 26, 2019 at 6:45 PM):
"The Chair States: the purpose for tonight's executive session is to discuss potential litigation regarding the property at 100 Beal Street because holding this discussion in open session would have a detrimental effect on the litigation position of the Town... Real Estate Counsel, Susan Murphy, provided background on Memorandum of Understanding pertaining to 100 Beal Street that was signed in 2001. Ms. Johnson provided additional background concerning the obligation of the contract with the Housing Authority and stated that tax payers have paid for work that the Town performed at the site. The Town/Housing Authority have reached an impasse with this agreement. Mr. Healey made a motion to file litigation regarding enforcement of agreement as to 100 Beal Street, Hingham, MA. Ms. Johnson seconded. All were in favor, 3-0."

4. The HHA Capitulation & Commonwealth Statutory Veto

HHA Capitulation (June 5, 2019): Under active litigation threat, the previous HHA Board voted at a Special Meeting on June 5, 2019 to transfer approximately 19 acres back to the Town.

Commonwealth Administrative Intervention (DHCD / EOHLC): State Associate Director of Public Housing Amy Stitely and DHCD legal counsel issued formal determinations (April 19 & June 26, 2019):

- Under **M.G.L. c. 121B, § 3**, housing authorities are independent public bodies corporate and politic, not subordinate municipal departments.
- Under **M.G.L. c. 121B, § 34**, property acquired or developed with state public housing funds (Project 689-01) **cannot be conveyed, transferred, or alienated without express written approval from the DHCD Director and review by the Attorney General.**
- DHCD denied approval, ruling the HHA's June 5 transfer vote unlawful and void.

State Restriction Recorded (July 18, 2019): DHCD recorded a *Notice of Statutory Transfer Restriction* at **Book 51379, Page 244** (Doc #55967), formally encumbering the title at the Registry of Deeds.

5. The Definitive Rescission Vote: HHA Minutes (September 7, 2021)

Under Executive Director **James Marathas**, the HHA Board of Commissioners voted 4–0 to permanently rescind the 2019 transfer motion:

HHA Regular Board Meeting Minutes (September 7, 2021 at 5:00 PM):

*"Mr. Marathas explained that the next motion is to rescind a motion that was taken under the previous administration. **Legal Counsel from DHCD as well as the Town Legal Counsel was consulted and rescinding the motion was the recommendation...***

Commissioner O'Meara made a motion, seconded by Commissioner Lauter, to rescind a prior Motion made at the June 5, 2019 Special Meeting... The Motion approved was to Transfer a parcel Land comprising approximately nineteen (19) acres to the Town of Hingham... Included in that Motion was a copy of the Memorandum of Agreement dated June 12, 2001; A Plot Plan of the property called "Division of School Tract II"; A Letter from DHCD dated April 19, 2019; A Letter from the Hingham Housing Authority dated July 31, 2001; A Quitclaim Deed and By-Laws of The Hingham Housing Authority...

The Motion was passed on a 4 – 0 vote. That Motion is now rescinded and the land in question shall remain in the ownership of the Hingham Housing Authority."

6. Master Primary Documentary Chain (1989–2026)

Date	Official Record Citation	Public Authority	Binding Legal Effect / Operational Action
04/21/1989	Book 09097, Page 158 (Doc #29758)	Town of Hingham → HHA	Fee deed conveying 15.014 ac for \$45,751; 30-yr reverter begins under M.G.L. c. 184A, § 3.
06/12/2001	MOU & Plan 100 of 2001	Selectmen & HHA (Gale Associates)	Division plan delineating 2.0-ac facility lot and 8.02-ac Lot 2.
04/24/2006	ATM Warrant Art. 38 Vote	Hingham Town Meeting	Town Meeting authorized deed amendment; none ever recorded at Registry of Deeds.
02/26/2019	Executive Session Minutes	Board of Selectmen (3–0 Vote)	Selectmen vote to sue HHA to enforce 2001 MOU nine days before 30-year reverter lapses.
03/07/2019	M.G.L. c. 184A, § 3 Expiration	Massachusetts General Laws	30-year reverter statutorily extinguishes by law; HHA holds fee simple absolute title.
04/19/2019	DHCD Official Warning Letter	Commonwealth of Massachusetts	State determines M.G.L. c. 121B, § 34 bars conveyance without state approval.
06/05/2019	Special Meeting Minutes	HHA Board of Commissioners	HHA initially votes under litigation threat to convey 19 acres to Town.
07/18/2019	Book 51379, Page 244 (Doc #55967)	Mass. DHCD & HHA	Notice of Statutory Transfer Restriction recorded, legally locking title against transfer.
09/07/2021	Regular Meeting Minutes	HHA Board (4–0 Vote)	HHA votes 4–0 to RESCIND June 5, 2019 transfer; land remains in HHA ownership.
02/20/2024	Regular Meeting Minutes	HHA Board of Commissioners	HHA declares Lot B surplus; engages MHP; initiates M.G.L. c. 30B procurement.
11/04/2024	Conservation Commission Minutes	Conservation Comm. (5–0 Vote)	Approves ORAD under MassDEP File No. 034-1509 for 100 Beal Street.
12/10/2024	Book 59527, Page 273 (Doc #78968)	MassDEP / Conservation Comm.	WPA Form 4B ORAD officially recorded; confirms wetland resource areas.
04/16/2025	155-Page Developer RFP	Hingham Housing Authority	RFP released for 8.6-ac Lot B senior affordable housing ground lease.
08/12/2025	Regular Meeting Minutes	HHA Board (4–0 Vote)	HHA awards development to Peabody Properties / AHSC; authorizes LDDA.
08/25/2026	Special Meeting Agenda	HHA Board of Commissioners	Item 9: Board votes to approve Land Disposition Agreement with AHSC Peabody Developers.